



File No.: EXP202304360

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 14, 2023. The complaint is directed against AYUNTAMIENTO DE BUSOT with NIF P0304600J (hereinafter, the AYTO.), regarding the installation of a video surveillance system located at CALLE LA FONT, CALLEJÓN DE ALMAZARA/DEL RAVAL, CALLE DEL PAL, CALLEJÓN DE LA ARENA, CALLE MAYOR, BUSOT, ALICANTE, with indications of a possible breach of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the complained municipality has installed video surveillance cameras in various locations within the municipality, capturing public spaces, without having requested the necessary administrative authorizations for the installation of such systems, and that, furthermore, these devices are not properly signposted with informative signs indicating the monitored area. Images of areas affected by the installed cameras are provided.

The submitted documents are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 12, 2023, as evidenced by the acknowledgment of receipt in the file.

On May 12, 2023, a response was received by this Agency indicating:

"Considering file number ***EXPEDIENTE.1, for a minor contract for supplies with the contractor SECURIMAN INSTALACIONES S.L. with CIF B42558601, with identifying codes of the contract Systems and devices for surveillance and security (***CÓDIGO.1) related to the subsidy file number ***EXPEDIENTE.2 and, considering the following:

FACTUAL BACKGROUND

First. - Considering that on May 30, 2022, and with entry registration number 2022-E-RE-1427, a budget for the present minor contract was submitted by B.B.B. with D.N.I. ***NIF.1, as a representative of SECURIMAN INSTALACIONES S.L. or in their own name.

Third. - Considering the report of necessity and non-alteration of the object of the contract dated September 1, 2022, from the informing body and the contracting body.

Fourth. - Considering that there is adequate and sufficient budgetary allocation in item 130-623.03.00 of the current municipal budget for expenses for 2022.

Fifth. - Considering that the duration of the contract does not exceed one year under Article 29.8 of Law 9/2017, of November 8, on Public Sector Contracts.

Sixth. - Considering the Mayor's Decree and the secretary's report regarding the applicable legislation and the procedure to follow for minor contracts in file ***EXPEDIENTE.3

LEGAL GROUNDS

First. - The minimum procedures provided for in Article 118 of the LCSP 9/2017 have been followed.

Second. - In accordance with the provisions of the Second Additional Provision of the LCSP 9/2017, the competence to contract corresponds to the Mayor-President.

Based on the above, exercising the powers that correspond to me in matters of administrative contracting, I RESOLVE:

First: To award the execution of a minor supply contract to SECURIMAN INSTALACIONES S.L. with

CIF B42558601, the object of which is the acquisition of various video surveillance systems for installation in the following locations in the municipality of Busot:

- Raval Street Area.
- Ermita Parking Area.
- Main Street Area.
- Restricted parking: San Rafael, Arena, Almassara, and Mayor.
- North entrance of Busot (crossing under the nursery).
- Public restrooms in the Hoya de los Patos urbanization.
- Cisnes Street (exit Urb. Hoya de los Patos).

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This contract is necessary to ensure compliance with the tasks assigned to the local police under Article 53 of the LOFFCCS, by reinforcing the camera system for monitoring, controlling, and regulating traffic, as well as for the surveillance and/or custody of its buildings and facilities at the previously listed points. (...)

In relation to your letter received in the General Document Registry dated April 12, 2023 (R.E. 699), regarding the request for information concerning the surveillance cameras located on Calle La Font, Callejón de la Almazara, Calle Raval, Calle del Pal, Callejón de la Arena, and Calle Mayor of the municipality of Busot, the following documentation is provided, and the following is communicated:

1.- Regarding the NIF number and the email and contact information of the person responsible for video surveillance. It is communicated that according to the announcement published in the DOCV 8970 dated December 7, 2020, and DOCV No. 9167 dated September 6, 2021, the data is as follows:

- Responsible for the processing: Town Hall of Busot. Department of Citizen Security and Traffic.
- Address of the responsible party: Pl. Ayuntamiento No. 1, 03111 Busot (Alicante).
- (...): C.C.C..
- Data protection delegate for the purposes of this document: The Chief of the Local Police of Busot.
- Processor: Chief of the Local Police of Busot. – (...): D.D.D.. NIF: ***NIF.2. (...)

2.- Indication of the number of cameras in the video surveillance system: It is indicated that there are currently 61 video surveillance cameras in the municipality of Busot, with their locations published in DOCV No. 8970 dated December 7, 2020, and in DOCV No. 9167 dated September 6, 2021, indicating that the video surveillance file is coded by the Spanish Data Protection Agency with the number ***CÓDIGO.2.

It is also reported that this Town Hall has formalized a security supply contract with the company Securiman Instalaciones S.L.

The following documentation is attached regarding the rest of the requested information:

- Report issued by (...) the Local Police of Busot dated May 11, 2023.
- Decree of the minor service contract for the supply of video surveillance cameras made with the company Securiman Instalaciones S.L.
- Publications in the DOCV of the areas where the video cameras have been installed in the municipality of Busot.
- Documentation provided by the company Securiman Instalaciones S.L. regarding the characteristics and technical specifications of the traffic management and citizen security system of the Town Hall of Busot.

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Observations:

This Chief of Local Police receives the assignment (...) to inform about the municipal traffic control camera system of Busot, in relation to the request made by the AEPD (file No. EXP202304360), received by the Electronic Headquarters of this Town Hall on April 12, 2023, regarding the "video surveillance cameras located on CALLE LA FONT, CALLEJÓN DE ALMAZARA/DEL RAVAL, CALLE DEL PAL, CALLEJÓN DE LA ARENA, CALLE MAYOR, BUSOT, ALICANTE,...," referred to in Annex I of said AEPD letter (which is also attached to this report); ordering said Department to provide information on the following points:

1. Providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used to view the images, showing the areas within the field of vision of the cameras.
2. Provide photographs of the sign or signs that warn of the existence of a monitored area, clearly showing the information contained in the sign, as well as its location.
3. If the surveillance system records images, indicate the retention period for these.

The cameras record their current images over old files and according to capacity, which in practice is never more than 15 days.

4. If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, alternatively, provide a responsible declaration stating, under your responsibility, that the cameras are fake.

It is not appropriate to provide information on this point, as there is no record of any fake cameras existing.

5. If the cameras are not operational or have been removed and therefore do not allow for viewing or recording images, you may provide a responsible declaration.

It is not appropriate to provide information on this point, as all cameras are operational, although only one of them (the one on Calle La Font) is pending the establishment of its signal connection with the video recorder monitor.

6. Any other information you consider relevant that may serve to assess the adequacy of the video surveillance system to data protection regulations.

In addition to having published in the Official Gazette of the Generalitat Valenciana the areas of installation and use of a network of video cameras and image reproduction for the control, surveillance, and discipline of traffic on municipal roads, as well as the indicative signs of the cameras installed on them; we respond, ex officio or at the request of any interested citizen, to any request (including verbal ones) from

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to pixelate the private areas that may tangentially be within the field of view of the traffic control cameras. As an example, I show the image from the camera on Calle Raval.

It should also be noted that the photographs provided by the complainant to the AEPD in Annex 1 of their submission (file no. EXP202304360) were taken when the camera system in those areas was being implemented and where the cameras were not yet operational nor had their indicative signs of presence installed.

7. Provide regulations and justification for the installation of the aforementioned cameras, whose photographs are attached to this document, capturing public spaces.

As it is a system for capturing and reproducing images for the control, regulation, surveillance, and discipline of vehicle and pedestrian traffic, it complies -among others- with the following legislation: The eighth additional provision of Organic Law 4/1997, of August 4, which regulates the use of video cameras by security forces and bodies in public places, establishes that "The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic shall be carried out by the authority responsible for traffic regulation, for the purposes provided in the articulated text of the Law on traffic, circulation of motor vehicles, and road safety, approved by Royal Legislative Decree 6/2015, of October 30, and other

specific regulations on the matter, and in accordance with the provisions of Organic Laws 3/2018, of December 5, on the regulation of the automated processing of personal data, and 1/1982, of May 5, on the protection of the right to honor, personal and family privacy, and one's own image, within the framework of the principles of use of the same provided in this law."

The sole additional provision of Royal Decree 596/1999, of April 16, which approves the Regulation for the development and execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by security forces and bodies in public places, establishes, regarding the regime applicable to video cameras for the surveillance, control, and discipline of traffic, that it is the responsibility of the public administrations with competence for traffic regulation to authorize the installation and use of the corresponding devices.

8. It must be demonstrated through photographs that the monitors displaying the images captured by the cameras are only accessible to authorized personnel. These photographs must clearly show the location of the monitors.

1. The monitors of the cameras are accessible only to the central agent on duty.

2. View of the cameras from the perspective of the central agent in charge of monitoring them.

9. It must specify the measures taken to ensure that only authorized personnel access the images and recordings.

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Among others:

a) The monitors of the cameras are only accessible by the agent at the Police central, with access being restricted by key and alarm code.

b) Access to the images from the cameras from the Police station is done on a computer with a password, which only authorized central agents have access to.

With the response to the transfer, the AYTO also provides photographic documentation showing the situation of the cameras, the images they record, the existence of signs indicating that the area is under video surveillance, and the publication made in the Official Gazette of the Valencian Community to that effect.

It is verified that the signs do not comply with the requirements established in Article 22 of the LOPDGDD, and they are requested to modify them. On 24/05/2023, new photographs are received showing that these signs have been regularized, now complying with the mandatory regulations.

THIRD: On May 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On July 20, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified on 26/07/2023, through the service of Single Enabled Electronic Address (DEHÚ), in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). The complained party submitted a written statement of allegations in which, in summary, they expressed that:

We do not understand how the AEPD opens a sanctioning file against us. The installation of the indicated traffic control cameras that we have installed on the public roads of our municipality, and according to the AEPD's own statement, are legitimized - fundamentally - for two reasons:

1. By complying with the eighth additional provision of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the security forces and bodies in public places, which

establishes that "The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic shall be carried out by the authority responsible for traffic regulation, for the purposes provided in the articulated text of the Law on traffic, circulation of motor vehicles, and road safety, approved by Royal Legislative Decree 6/2015, of October 30, and other specific regulations on the matter,..."

2. By also complying with what is established in the sole additional provision of Royal Decree 596/1999, of April 16, which approves the Development Regulation and...

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Execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the security forces and bodies in public places, indicates that the applicable regime for video cameras for the surveillance, control, and discipline of traffic corresponds to the public administrations with competence for traffic regulation, which is responsible for authorizing the installation and use of the corresponding devices. As the Mayor, I have authorized—according to current legislation—the installation of such traffic control cameras in my municipality.

We also disagree with the AEPD's assertion that the images from our traffic cameras "actually capture more areas of the public road than would be necessary to monitor potential violations in traffic and road safety," as we have previously demonstrated in Report (...) from the Local Police of Busot No.

***EXPEDIENTE.4 (already submitted to this file), that the Town Hall itself "masks" such images of non-public areas, in order not to affect the privacy of third parties.

Finally, of the more than 3,343 inhabitants registered in Busot as of 2023, and during the years that these traffic cameras have been in operation, we have received no written complaints, neither from the Town Hall of Busot nor from the AEPD. It has only been the citizen A.A.A. who, (...) has sought to distort our traffic control camera system in Busot, which has been helping to control urban traffic in Busot for years without any problems or neighborhood complaints.

I urge the AEPD to take a broader view and, by verifying the reality of the camera system, see that it is legal and proportional. And that just because of the spurious and self-interested attack of one person, the legality of a camera system that faithfully serves the general interest of all the residents of Busot should not be called into question.

SIXTH: On 29/09/23, a was issued proposing the filing of the current procedure, considering that the system complied with current legality, with no administrative infringement accredited in the matter. Consulting the database of this Agency, it is noted as electronically on 02/10/23.

From the actions taken in this procedure and the documentation in the file, the following have been accredited:

PROVEN FACTS

FIRST: It is accredited that the TOWN HALL has installed video surveillance cameras in various locations in the municipality, capturing public roads, whose purposes are the surveillance and regulation of Traffic.

SECOND: It is accredited that the installation of such cameras complies with the current regulations in the matter, specifically regulated in Royal Decree 596/1999, of April 16, which approves the Regulation for the development and execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Bodies in public places, the Eighth Additional Provision of Organic Law 4/1997, of August 4, and Article 7.a) of Legislative Royal Decree 6/2015, which approves the Law on Traffic, Motor Vehicle Circulation, and Road Safety.

THIRD: It is accredited that the images captured by the cameras do not show physical persons, in case any are found within the field of vision, as they are anonymized.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the entity being complained against, the following should be noted:

-The TOWN HALL alleges that the installed traffic control cameras are legitimate as they comply with current regulations.

In this regard, this Agency points out that the sanctioning file was not initiated due to a lack of legitimacy in data processing (Article 6 of the GDPR), even though the complainant indicated so, as the relevant legislation was analyzed and it was considered that the installation of the cameras itself was not contrary to law.

-The TOWN HALL alleges that the images captured by the cameras do not affect the privacy of third parties, as either ex officio or at the request of any interested party, the TOWN HALL "masks" such images.

In this regard, and once the documentation provided in allegations was analyzed, this Agency considers that, indeed, the field of vision of the different installed cameras affects the roads included in the scope of application of Legislative Royal Decree 6/2015, of October 30, by which it is...

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approves the consolidated text of the Law on Traffic, Vehicle Circulation, and Road Safety, whose Article 2 states:

"The provisions of this law are applicable throughout the national territory and bind the holders and users of public roads and land suitable for circulation, both urban and interurban, as well as those of roads and land that, without having such suitability, are of common use and, in the absence of other regulations, to the holders of private roads and land that are used by an indeterminate collective of users."

It should also be noted that in the images captured to observe the state of traffic and the infractions that may be committed, there are no images of physical persons, as the AYTO, as already indicated, proceeds to anonymize them.

-The AYTO claims that of the more than 3,343 registered inhabitants, only one has filed a complaint.

In this regard, this Agency indicates that, according to Section 2 of Article 64 of the LOPDGDD: "When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and in this organic law, it will be initiated by an initiation agreement, adopted on its own initiative or as a result of a complaint, which will be notified to the interested party."

*(The underlining corresponds to the Agency)

Therefore, a single complaint is sufficient for the AEPD to initiate a sanctioning procedure in the field of data protection.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage,

adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

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It is, therefore, pertinent to analyze whether the processing of personal data (image of physical persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Royal Decree 596/1999, of April 16, which approves the Regulation for the development and execution of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places, states:

“1. The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic on public roads shall be carried out in accordance with the provisions of the eighth additional provision of Organic Law 4/1997 and in this provision.

2. It shall be the responsibility of the public administrations with competence for traffic regulation to authorize the installation and use of the devices referred to in the previous section.”

The Eighth Additional Provision of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places, establishes:

“The installation and use of video cameras and any other means of capturing and reproducing images for the control, regulation, surveillance, and discipline of traffic shall be carried out by the authority responsible for traffic regulation for the purposes provided in the articulated text of the Law on Traffic, Vehicle Circulation, and Road Safety, approved by Royal Legislative Decree 339/1990, of March 2, and other specific regulations in the matter, and in accordance with the provisions of Organic Laws 5/1992, of October 29, on the Regulation of Automated Processing of Personal Data, and 1/1982, of May 5, on the Civil Protection of the Right to Honor, Personal and Family Privacy, and One's Own Image, within the framework of the principles of use of the same provided in this Law.”

For its part, Article 7.a) of Royal Legislative Decree 6/2015, which approves the Law on Traffic, Vehicle Circulation, and Road Safety, states:

“It is the responsibility of municipalities:

a) The regulation, ordering, management, surveillance, and discipline, through their own agents, of traffic on the urban roads they own, as well as the reporting of infractions committed on those roads and the sanctioning of the same when it is not expressly attributed to another Administration.”

*(The underlining corresponds to the AEPD)

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IV

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the security of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of

the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

That is to say, cameras and video cameras installed for security purposes may not obtain images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the security of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without duly justified consent from their owners, or, where applicable, from the persons present in those spaces.

In this case, from the documentation provided in the file, it can be considered that the installation of cameras carried out by the AYTO. for the purposes of surveillance and traffic regulation is legitimate, and that the images captured by these cameras are not excessive in relation to the purposes for which they should be used, given that they are located on the roads included within the scope of Royal Legislative Decree 6/2015, of October 30, which approves the consolidated text of the Law on Traffic, Motor Vehicle Circulation, and Road Safety, in addition to not showing images of persons who could potentially be recorded, which is why it is considered that the processing carried out is proportional to the purposes, and no breach of the aforementioned Article 5.1.c of the GDPR is observed.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been accredited,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of this procedure as no administrative infringement has been accredited in the matter at hand.

SECOND: TO NOTIFY this resolution to the entity AYUNTAMIENTO DE BUSOT.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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